

23VECV04876 23VECV04876

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C06%2F29%2F2026

Source SHA-256: 74a038a338ea1efe85defdc4aaeb09dfd312fcec6f6b789e97f5831b27412b91

Case Number: 23VECV04876 Hearing Date: June 29, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LIOR MOR, an

Individual,

Plaintiff,

vs.

BOGIES LOUNGE & THE TERRACE;

WESTLAKE VILLAGE INN & SPA; CHARLES TOLMAN, an Individual; JERRY TOLMAN,

an Individual; and DOES 1 to 50, Inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23VECV04876

ORDER

GRANTING PLAINTIFF'S MOTIONS TO COMPEL RESPONSES TO SUPPLEMENTAL REQUESTS FOR PRODUCTION (SET ONE),

REQUESTS FOR PRODUCTION (SET TWO), FORM INTERROGATORIES (SET TWO), REQUESTS FOR ADMISSION (SET ONE), SUPPLEMENTAL INTERROGATORIES (SET ONE), AND SPECIAL INTERROGATORIES (SET TWO)

WESTLAKE PROPERTIES, INC.,

Cross-Complainant,

vs.

CHARLES TOLMAN; JERRY TOLMAN; and ROES

1-50, Inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CHARLES

TOLMAN, an Individual, JERRY TOLMAN, an Individual,

Cross-Complainants,

VS.

ROES 1

through 20, Inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

I.

BACKGROUND

This is a personal injury action. Plaintiff Lior Mor ("Plaintiff") filed a Complaint against Defendants Bogies Lounge & The Terrace, Westlake Village Inn & Spa, Charles Tolman ("Tolman"), and Jerry Tolman. Plaintiff alleges he was at Bogies Bar when the Tolmans assaulted Plaintiff. (See Compl., ¶ 13.)

On June 16, 2026, Plaintiff dismissed Bogies Lounge & Terrace, Westlake Village Inn & Spa, and Westlake Properties. On June 25, 2026, Plaintiff dismissed Jerry Tolman.

Plaintiff now moves to compel Tolman's responses to his Supplemental Requests for Production (Set One), Requests for Production (Set Two), Form Interrogatories (Set Two), Requests for

Admission (Set One), Supplemental Interrogatories (Set One), and Special Interrogatories (Set Two).

II.

PROCEDURAL HISTORY

On November

11, 2023, Plaintiff filed a Complaint alleging: (1) Negligence - Premises Liability; (2) Assault; (3) Battery; (4) Intentional Infliction of Emotional Distress; and (5) Negligent Infliction of Emotional Distress.

On January

10, 2024, Plaintiff filed an Amendment to Complaint designating Westlake Properties, Inc., as Doe 1.

On January

11, 2024, Westlake Properties, Inc. ("Westlake Properties") filed an Answer to Plaintiff's Complaint, stating it was erroneously sued as Bogies Lounge & The Terrace and Westlake Village Inn & Spa.

On January

18, 2024, Westlake Properties, Inc. filed a Cross-Complaint.

On January

31, 2024, the Court denied Charles Tolman and Jerry Tolman's Motion to Change Venue and Motion to Strike.

On February

27, 2024, Charles Tolman and Jerry Tolman filed a Cross-Complaint and Answer to Plaintiff's Complaint.

On August 13,

2025, the Court granted Westlake Properties' Motion For Leave to File a First Amended Answer.

On August 20,

2025, the Court granted the parties' stipulation to continue trial and Motion for Summary Judgment.

On May 28,

2026, the Court granted Westlake Properties' Application for Determination of Good Faith Settlement.

On June 1,
2026, Plaintiff filed the instant Motions to Compel.

On June 16,
2026, Plaintiff dismissed Bogies Lounge & Terrace, Westlake Village Inn & Spa, and Westlake Properties.

On June 25,
2026, Plaintiff dismissed Jerry Tolman.

As of June
26, 2026, no oppositions have been filed.

Trial is
scheduled July 27, 2026.

III. LEGAL STANDARD

A. Requests for Production

A party upon
whom a demand for the production of documents has been made has 30 days after
service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The
propounding and responding parties may agree to extend the time for response. (See
Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely
response, the propounding party's remedy is to seek a motion to compel
response. (See Code Civ. Proc. § 2031.300(b).) A responding party that
does not provide responses waives the right to object to the demand, including
objections based on privilege or work product. (See Code Civ. Proc. §
2031.300(a).)¿

B. Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

C.

Requests for Admission

“Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc. § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared...” (Code Civ. Proc. § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

IV.

ANALYSIS

There are six

discovery motions before the Court concerning Tolman. The Court will address them together given their substantially similar facts.

On April 1, 2026, Plaintiff served Tolman, through his counsel at that time, Plaintiff's Supplemental Request for Inspection and Production of Documents (Set One), Requests for Production of Documents (Set Two), Form Interrogatories (Set Two), Requests for Admission (Set One), Supplemental Interrogatories (Set One), and Special Interrogatories (Set Two). (See e.g. Supp. RFP Declaration of Ronald M. Binder filed June 1, 2026 ("Binder Decl."), ¶ 3, Ex. 1.) Plaintiff has not received any discovery responses to date despite several attempts to meet and confer with Tolman. (See id., ¶¶ 4-6, Exs. 2-4, Mot. at 4:7-9.)

Accordingly, the Court GRANTS Plaintiff's Motions to Compel Tolman's responses to his Supplemental Request for Inspection and Production of Documents (Set One), Requests for Production of Documents (Set Two), Form Interrogatories (Set Two), Requests for Admission (Set One), Supplemental Interrogatories (Set One), and Special Interrogatories (Set Two).

Tolman is ordered to provide code compliant responses without objection on or before July 10, 2026.

///

V.
DISCOVERY
SANCTIONS

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel...responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust.(Code Civ. Proc. § 2030.290(c), § 2031.300(c).)

The court shall also impose a "monetary sanction...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc.

§ 2033.280(c).)

Plaintiff requests discovery sanctions in the amounts of \$622.50, \$1,747.50, and \$2,310.00 in connection with his discovery Motions.

The Court awards Plaintiff \$1,560.00.

The Court awards the six \$60.00 filing fees. The Court finds 1.5 hours to prepare the substantially similar, routine discovery Motions and 0.5 hours to remotely attend the hearing at the requested hourly rate of \$750.00 reasonable.

Tolman is ordered to pay Plaintiff's counsel \$1,560.00 on or before July 31, 2026.

VI.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motions to Compel Tolman's responses to his Supplemental Request for Inspection and Production of Documents (Set One), Requests for Production of Documents (Set Two), Form Interrogatories (Set Two), Requests for Admission (Set One), Supplemental Interrogatories (Set One), and Special Interrogatories (Set Two).

///

///

///

Tolman is ordered to provide code compliant responses without objection on or before July 10, 2026.

Tolman is ordered to pay Plaintiff's counsel \$1,560.00 on or before July 31, 2026.

IT

IS SO ORDERED.

DATED: June 29, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.